

The Family Court of the State of Delaware

In and For ☐ New Castle County ☐ Kent County ☐ Sussex County

PETITION FOR MINOR NAME CHANGE

Please complete one petition per Child

File Number	Petition Number

<i>Petitioner</i>	<i>vs</i>	<i>Respondent 1</i>	<i>Respondent 2</i>
Name		Name	Name
Street Address		Street Address	Street Address
P.O. Box / Apt Number		P.O. Box / Apt Number	P.O. Box / Apt Number
City/State/Zip Code		City/State/Zip Code	City/State/Zip Code
D.O.B.		D.O.B.	D.O.B.
Email Address		Email Address	Email Address
Relationship to Minor ☐ Parent ☐ Legal Guardian		Relationship to Minor ☐ Parent ☐ Legal Guardian	Relationship to Minor ☐ Parent ☐ Legal Guardian
Attorney Name		Attorney Name	Attorney Name
Interpreter Needed ☐ Yes ☐ No Language		Interpreter Needed ☐ Yes ☐ No Language	Interpreter Needed ☐ Yes ☐ No Language

In the interest of the Minor Child _____ Date of birth _____

Place of Birth (City & State) _____

Petitioner desires to change the name of the Minor Child from _____ to _____

The reason for the proposed change: _____

Name of Respondent 1 / Parent _____

If Respondent 1 / Parent is deceased, date of death: _____ Death Certificate must be filed with Petition

Has Respondent 1 / Parent:

- | | |
|--|---|
| 1. Been listed on the Child's Birth Certificate? | ☐ YES ☐ NO ☐ Unknown |
| 2. Filed a Voluntary Acknowledgement of Paternity? | ☐ YES ☐ NO ☐ Unknown |
| 3. Been established as a parent of the Child by a Court? | ☐ YES ☐ NO ☐ Unknown |
| 4. Had his or her parental rights terminated? | ☐ YES ☐ NO ☐ Unknown |
| 5. Had any contact with the child? | ☐ YES ☐ NO ☐ Unknown |
| 6. Financially supported the child either by Court Order or otherwise? | ☐ YES ☐ NO ☐ Unknown |
| 7. Said they are opposed to the change of name? | ☐ YES ☐ NO ☐ Unknown |

If Respondent 1 / Parent agrees to the name change, Form 493 – Affidavit of Parental Consent to Petition for Minor Name Change should be filed along with this petition.

If Applicable, Name of Respondent 2 / Parent _____

If Respondent 2 / Parent is deceased, date of death: _____ Death Certificate must be filed with Petition

Has Respondent 2 / Parent: _____

- | | |
|--|---|
| 1. Been listed on the Child's Birth Certificate? | ☐ YES ☐ NO ☐ Unknown |
| 2. Filed a Voluntary Acknowledgement of Paternity? | ☐ YES ☐ NO ☐ Unknown |
| 3. Been established as a parent of the Child by a Court? | ☐ YES ☐ NO ☐ Unknown |
| 4. Had his or her parental rights terminated? | ☐ YES ☐ NO ☐ Unknown |
| 5. Had any contact with the child? | ☐ YES ☐ NO ☐ Unknown |
| 6. Financially supported the child either by Court Order or otherwise? | ☐ YES ☐ NO ☐ Unknown |
| 7. Said they are opposed to the change of name? | ☐ YES ☐ NO ☐ Unknown |

If Respondent 2 / Parent agrees to the name change, Form 493 – Affidavit of Parental Consent to Petition for Minor Name Change should be filed along with this petition.

Does the minor child have pending delinquency charges, or is currently subject to the supervision of the Department of Corrections? ☐ Yes or ☐ No

If yes, please explain _____

Is the minor child required to register with the Delaware State Police or with any other governing authority? _____

☐ Yes or ☐ No If yes, please explain: _____

The following forms and documentation must be filed with this Petition:

- ☐ Certified copy of the Minor Child's Birth Certificate
- ☐ Legal Guardian Court Order (if applicable)
- ☐ Deceased Parent(s) Death Certificate (if applicable)

_____	_____	_____
Date	Petitioner Print Name	Petitioner Signature

SWORN TO AND SUBSCRIBED Before me this date, _____

Notary Public/Clerk of Court

Affidavit of Child 14 Years of Age or Older

BE IT REMEMBERED, that _____ ("Child Affiant"), on this date _____
being duly sworn by me according to the law, personally appeared before me, a Notary Public for the State of _____
and County of _____, did depose and say:

☐ I understand that the Petitioner has asked the Court to change my name to

☐ I hereby agree that my name be changed as requested.

☐ I do not agree that my name be changed as requested.

SWORN TO AND SUBSCRIBED Before me this date, _____

Child Affiant (Print Name)

Child Affiant (Signature)

Notary Public/Clerk of Court

The Family Court of the State of Delaware

In and For ☐ New Castle County ☐ Kent County ☐ Sussex County

Affidavit of Parental Consent to Petition for Minor Name Change

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<i>Petitioner</i>	<i>vs</i>	<i>Respondent 1</i>	<i>Respondent 2</i>
Name		Name	Name
Street Address		Street Address	Street Address
P.O. Box / Apt Number		P.O. Box / Apt Number	P.O. Box / Apt Number
City/State/Zip Code		City/State/Zip Code	City/State/Zip Code
D.O.B.		D.O.B.	D.O.B.
Email Address		Email Address	Email Address

BE IT REMEMBERED, that _____ (Affiant), on this date _____
being duly sworn by me according to the law, personally appeared before me, a Notary Public for the State of
_____ and County of _____ did depose and say:

1) I am the Respondent in this case involving my child:

Child's Name: _____

Child's Date of Birth: _____

- 2) I hereby agree to the requested name change.
- 3) I signed this Consent voluntarily and of my own free will.
- 4) I understand that by signing this document and authorizing its filing, I am entering an appearance and, if service has not been accomplished, I am agreeing to waive service of process of the Petition for Minor Name Change.
- 5) I further understand that with my consent the Court may enter an Order granting the minor name change without conducting a hearing.
- 6) If the name change order is signed by a Commissioner, I hereby waive my right to a Review of a Commissioner's Order as I have consented to the Order's entry.

SWORN TO AND SUBSCRIBED Before me this date, _____

Notary Public/ Clerk of Court

Affiant (Print Name)

Affiant Signature